Showing contexts for: **consumer complaint deficiency service unfair trade** in Ramesh Kumar Sihan Hans Alias Ramesh ... vs Goyal Eye Institute & Ors. on 30 March, 2012

Context size: Smallest Smaller Small Current

PER JUSTICE R.C.JAIN, PRESIDING MEMBER Alleging gross medical negligence and **deficie**ncy in **service** in performing surgery on the right eye for removal of cataract and implantation of ocular lens at the hands of the opposite party-doctor, the complainant has filed the present **complaint** claiming a total compensation of Rupees Three crores alongwith simple interest @ 12% p.a. w.e.f. 12.03.2010 till the date of payment.

2. We have carefully perused the averments and allegations made in the **complaint** as also the documents and material placed on record. We have heard the complainant and Mr. Suneet Bhardwaj, Advocate, learned counsel, representing the complainant at length on the question of maintainability of the present **complaint** before this Commission in particular whether the **complaint** falls within the pecuniary jurisdiction of this Commission.

3. The case of the complainant is that he is a government officer serving in the Ministry of Labour and Employment, Govt. of India. At the age of about 52 years, he developed cataract in his right eye in the year 2009, for removal of which he contacted opposite party no.1-Goyal Eye Institute. On 12.03.2010 Dr.Pawan Goel-opposite party no.2 conducted cataract surgery in the morning of 12.03.2010 on the complainant and he was discharged on the same day. It is alleged that due to negligence of opposite party no.2, there was renal detachment of the right eye for which he underwent certain surgeries first at Dr.R.M.L.Hospital and then at AIIMS-Rajinder Prasad Eye Centre, New Delhi. However, the complainant lost the complete

vision of the right eye which caused permanent disability. Complainant claims to have incurred a total expenditure of Rs.86050/- for undergoing said treatment as per the following details:

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5. A perusal of the above statement would show that out of the sum of Rupees Three crores, a sum of Rupees Two crore has been claimed for causing permanent disability of the right eye of the complainant closing all opportunities for employment and for experiencing great difficulty in daily life and routine pursuits and balance of Rs.1.00 crore is claimed on the basis of the medical expenses incurred throughout the treatment and the trauma and mental agony the complainant and his family underwent and which is continuing one.

That apart, complainant has claimed interest on the said amount.

6. On a consideration of the matter i.e. allegations of medical negligence and **deficie**ncy in **service** in the treatment and resultant injury and loss occasioned to the complainant, we were prima facie not satisfied that the compensation as high as Rupees Three crores claimed by the complainant could legitimately be claimed by him, so we afforded an opportunity to the complainant and his counsel to explain the basis of claiming such a high compensation. Learned counsel for the complainant vehemently argued that claim of compensation of Rupees Three crores is quite just and reasonable looking to the entirety of the facts and circumstances of the case. It was contended that larger part of the compensation of Rupees Three crore claimed in the **complaint** is with a view to bringing about the qualitative change in the attitude of the **service** provider i.e. OP No.2 and the balance amount is claimed towards pecuniary damages as already suffered or likely to be suffered by the complainant in future. In support of his contention, learned counsel for the complainant has sought support from a Supreme Court decision in the case of Charan Singh Vs. Healing Touch Hospital & Ors. In that case, this Commission had dismissed the **complaint**

holding that the claim of Rs.30 lakh made by the complainant was unrealistic, exaggerated and excessive. In appeal, the Supreme Court set aside the said order by observing as under:

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7. There cannot possibly be any quarrel with the above stated legal proposition but the crucial question which arises for consideration is as to whether this Commission or for that reason any other **consumer** fora established under the provisions of **Consumer** Protection Act, 1986 (in short, the Act) must entertain the **complaint** simply going by the value of the claim made by the complainant, howsoever, exaggerated or unrealistic it may be or it has a duty to examine whether the **complaint** falls within or outside its pecuniary jurisdiction. Section 12(3) of the Act provides the procedure to be followed by a District Forum, State Commission or National Commission on receipt of a **complaint**. It envisages examination of the **complaint** with a view to find out if going by the averments and allegations made in the **complaint**, **complaint** is fit to be admitted and proceeded with. Such examination of the **complaint** would require consideration of the following aspects:

> (i) Whether complainant is a **consumer** within the meaning of section 2 (1) (d) of the Act and is entitled to invoke the original jurisdiction of a **consumer** forum;

> (ii) Whether the **complaint** raises one or more **consumer** dispute viz., **unfair trade** practice or restrictive **trade** practice, defects in goods or **deficie**ncy in **service** as defined under the Act;

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8. From these provisions intention of the legislature is manifest that the **complaint** claiming a relief upto a particular value should be filed before and decided by the respective three fora. This appears to be a fair scheme going by the hierarchy of the **consumer** fora established under the Act. In **complaints** where the value of the goods or **service** can be ascertained with certainty, there appears to be not much difficulty in

accepting the value as put forth by the complainant. However, the difficulty arises when the value of the goods or **services** is very meagre but the compensation claimed is manifold, based on the complainants perception of the extent of loss or injury suffered by him due to the **defici**t in goods or **deficie**nt **service**. More often than not, this happens in the **complaints** where compensation is claimed for the loss and injury suffered by the complainant or by his successor-in-interest after the injury or death of the patient arising from medical negligence and / or **deficie**ncy in treatment. In such cases, the fee paid to the medical practitioner or hospital may be a few thousand or lakh of rupees but the compensation for the loss and injury resulting from medical negligence or **deficie**ncy in the treatment is claimed in crores. In a given case, having regard to the status of the deceased patient, his occupational income, perhaps claim of crores of Rupees may be justified towards loss of income due to depriviation of the income of the deceased patient and on account of non pecuniary damages etc. This may not hold good in many other cases where the loss occasioned and compensation claimed even prima facie appear to be imaginary, fanciful and unrealistic.

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9. We are constrained to note that of-late there is an increased tendency on the part of the complainants to over-value their claim. The reason why the complainants tend to do this are not difficult to understand. The one reason for doing this may be that a very meagre fee as compared to the Court Fee payable in civil suit, is payable on **complaints** filed before the **consumer** fora. The optimum fee payable for filing original **complaint** is Rs.5000/- irrespective of the valuation of the claim made in the **complaint**. Yet another reason may be is that when it comes to settlement of the claim, the complainant may have an edge and will be in better bargaining position to settle the claim on his own terms. Such a tendency need to be curbed, lest the **complaints** of over-valued claim keep on mounting in the National Commission. As per the recent statistics more than 200 **complaints** which are more than a decade old are pending for disposal. Had proper examination of the **complaint** been done at the admission stage, perhaps the number of **complaints** filed and pending could have

been drastically reduced. It is the experience of this Commission that more often than not in most of the **complaints**, compensation awarded by this Commission is not even a fraction of the claim made by the complainant.